

1 ENGROSSED HOUSE  
2 BILL NO. 3345

By: Williams of the House

3 and

4 Stanley of the Senate  
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7 An Act relating to inmate assessment and evaluations;  
8 amending 43A O.S. 2021, Section 3-704, which relates  
9 to the assessment and evaluation of inmates;  
10 providing risk, mental health and substance abuse  
11 screenings for arrested persons; requiring review of  
12 screenings by approved personnel; clarifying  
13 procedures regarding the admissibility of certain  
14 information and screening results; and providing an  
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 43A O.S. 2021, Section 3-704, is  
18 amended to read as follows:

19 Section 3-704. After ~~an initial appearance~~ arrest, a person  
20 accused of a ~~felony~~ criminal offense may submit to ~~an~~ approved risk,  
21 mental health and substance abuse ~~assessment and evaluation~~  
22 screenings which shall be administered and ~~scored~~ reviewed by  
23 assessment personnel ~~certified~~ approved by the Department of Mental  
24 Health and Substance Abuse Services. Any person lacking sufficient  
skills to comprehend or otherwise participate in the ~~risk, mental~~  
~~health and substance abuse assessment and evaluation~~ screening

1 process shall have appropriate assistance. The court, district  
2 attorney, arrested person and counsel for the arrested person shall  
3 have access to the results of the ~~risk, mental health and substance~~  
4 ~~abuse assessment and evaluation~~ completed screening. The Any  
5 information gathered or the results of ~~the risk, mental health and~~  
6 ~~substance abuse assessment and evaluation~~ any screening shall not be  
7 admissible as evidence in ~~the~~ a criminal case matter unless  
8 specifically waived by the defendant or for purposes of determining  
9 sentencing and diversion options for a defendant who has pled guilty  
10 and punishment is to be determined at the discretion of the court.  
11 The court and the district attorney shall consider the results of  
12 the risk, mental health and substance abuse ~~assessment and~~  
13 ~~evaluation~~ screening to determine sentencing and diversion options  
14 for the person.

15 SECTION 2. This act shall become effective November 1, 2026.  
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1 Passed the House of Representatives the 25th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate